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File No.: EXP202300216

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: A.A.A. (hereinafter, the claimant) filed a complaint with the Spanish Agency for Data Protection on December 2, 2022. The complaint is directed against B.B.B. with NIF ***NIF.1 (hereinafter, the respondent), for the installation of a video surveillance system located at ***ADDRESS.1, with indications of a possible breach of the provisions of Article 13 of the GDPR and Article 6.1 of the GDPR.

The reasons supporting the complaint are as follows:

The claimant states that they rented a room in a house from the respondent, without being informed that in that house, in a hallway, there is a video surveillance camera that captures common areas and the entrance to the claimant's room, as well as access to the bathroom and kitchen of the house. The claimant understands that this camera could affect their privacy and contravene data protection regulations.

They provide images of the camera's location.

The submitted documents are: - Photographic report

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The transfer, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was received on 01/02/2023 as evidenced by the acknowledgment of receipt in the file.

The respondent has not responded to the transfer actions and request for information notified.

THIRD: On March 2, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the claimant was admitted for processing.

FOURTH: On June 16, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 13 of the GDPR and Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), and the respondent submitted a written statement in which, in summary, they stated the following:

"A.A.A., from the first moment they moved in, was fully aware of the existence of the camera and never expressed any disagreement until 8 months later when they decided to leave because they were fired from their job.

At all times, I was clear and transparent; I never tried to hide the camera, which is visible to everyone. The housemates were always in agreement since it is a security measure for their belongings in their rooms.

Now I am being reported for having a camera that everyone was aware of from day one, but I am grateful not to be reported because their belongings, money, etc., were stolen, or worse, for some kind of sexual harassment or violence; if it weren't for the camera, I might even be in prison today.

The camera works with an application; I do not have the premium version installed, so it only takes images when someone crosses the door.

Imagine living with strangers and having my partner stolen from or harmed.

I could provide sworn statements from the tenants who lived in the apartment with A.A.A. where

everyone, AND I SAY EVERYONE WAS IN AGREEMENT WITH THE CAMERA. I repeat, if A.A.A. was unhappy with the camera, she should have expressed it to me, and I would have returned her money without any problem, rather than complaining and reporting after 8 months when she was already going to leave."

SIXTH: On 09/08/23, a was issued in which the infringement of Article 6 of the GDPR is considered proven, as the respondent has a video surveillance camera that captures images from inside the house without justified cause, proposing a sanction amounting to €5,000 for the infringement of Article 6 of the GDPR, as well as another sanction of €300 for the infringement of Article 13 of the GDPR, for not having an informative sign indicating that it is a video-monitored area.

SEVENTH: Upon consulting the database of this Agency, it is recorded that the notification was made in due time and form on 26/10/23, as certified by the Official Postal and Telegraph Service. From the actions carried out in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

FIRST: It is established that in the house where the claimant rented a room, a video surveillance camera is installed whose field of...

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vision affects common areas of the dwelling, processing the data of the tenants of the property.

SECOND: It is noted that there are no signs indicating that the area is under video surveillance.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

In response to the allegations presented by the entity being complained against, the following should be noted:

The entity being complained against alleges that the complainant "was fully aware of the existence of the camera and never expressed any disagreement until 8 months later when they decided to leave." "That they never attempted to hide the camera, which is visible to everyone, and that the roommates were always in agreement since it is a security measure for their belongings in their rooms."

In this regard, this Agency points out that the GDPR, in its Article 7, regarding consent, states:

"1. When the processing is based on the consent of the data subject, the controller shall be able to demonstrate that the data subject has consented to the processing of their personal data."

Regarding the manner of providing consent, Article 6.1 of the LOPDGDD states, concerning the processing of personal data based on the consent of the affected party, that:

"1. In accordance with the provisions of Article 4.11 of Regulation (EU) 2016/679, consent of the affected party is understood to be any manifestation of free, specific, informed, and unequivocal will by which they accept, either by a statement or a clear affirmative action, the processing of personal data concerning them (...)."

Furthermore, consideration (32) of the GDPR should be taken into account, as it indicates:

"Consent must be given by means of a clear affirmative act that reflects an unequivocal, specific, informed, and free manifestation of the data subject's will to accept the processing of personal data concerning them..."

In the present case, the entity being complained against does not demonstrate in its allegations that the complainant provided their consent to the processing of data that was being carried out in the manner referred to both in the GDPR and in the LOPDGDD.

III

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection, therefore, is subject to this Regulation. In Article 4.2 of the GDPR, the concept of "processing" of personal data is defined.

"'processing': any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, collation or interconnection, limitation, erasure or destruction;"

Images generated by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations.

It is, therefore, pertinent to analyze whether the processing of personal data (images of individuals) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

IV

Article 18, section 4 of the Spanish Constitution states: "The law shall limit the use of computing to guarantee the honor and personal and family privacy of citizens and the full exercise of their rights." In Recital number 40 of the GDPR, it is indicated that for processing to be lawful, personal data must be processed on one of the legal bases established by law (...).

Therefore, the "data processing" carried out with the camera(s) installed inside the property must be justifiable under the so-called legal bases, that is, it must be possible to demonstrate the lawfulness of the processing in the list of situations or specific cases in which it is possible to process personal data. Article 6.1 of the GDPR establishes the circumstances that allow the processing of personal data to be considered lawful.

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"1. The processing shall only be lawful if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary to protect vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, provided that such interests do not override the interests or the fundamental rights and freedoms of the data subject which require the protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

The presence of cameras inside the dwelling constitutes an infringement of a space that ceases to be "exclusive" to the owner, becoming subject to the enjoyment of a third party whose rights must be respected, including the right to privacy and the right to "personal data protection."

Therefore, the “personal and domestic” scope in the capturing of images from within the private home (Article 22.5 LOPDGDD) disappears when the temporary use and enjoyment of the private dwelling is ceded to a third party, transforming it into a space reserved for the strictest personal and family privacy, which is also protected by data protection regulations that generally do not allow the capturing and processing of such data.

The claim is based on the alleged unlawfulness of the installation of a surveillance camera in the hallway of the property where the claimant has rented a room (payment of the deposit is provided). As evidence of these assertions, the claimant submitted several photographs showing the existence of a camera located above the entrance door of the dwelling, on the interior side, whose field of vision would be affecting different rooms and common areas of the dwelling.

The right to privacy, let us remember, consists of guaranteeing the free development of the individual private life of each person, without “interference from third parties”; the presence of interior cameras not only implies excessive control over the entries/exits of the resident and/or guests but also constitutes “data processing” that is not justified in the present file.

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In this regard, the Constitutional Court asserts in STC 22/1984 that the right to the inviolability of the home constitutes a true fundamental right of the person, established, as we have said, to guarantee the sphere of privacy of the individual within the space that the person themselves chooses, which must be characterized precisely by being exempt or immune to invasions or external aggressions, whether from other individuals or from public authority.

In this sense—Contentious-Administrative Judgment No. 2923/2020, Superior Court of Justice of Catalonia, Contentious Chamber, Section 3, Rec 237/2019 of July 2, 2020—.

"As stated in STC 10/2002, of January 17 (FFJJ 5 and 6), cited by the Prosecutor and by the appellant in protection, and recalled later in STC 22/2003, of February 10, the constitutional norm that proclaims the inviolability of the home and the prohibition of entry and home searches (art. 18.2 CE), despite the autonomy that the Spanish Constitution recognizes to both rights, constitutes a manifestation of the preceding norm (art. 18.1 CE) that guarantees the fundamental right to personal and family privacy. Thus, if the right proclaimed in art. 18.1 CE aims to protect a reserved sphere of individuals' lives excluded from the knowledge of third parties, whether they are public authorities or private individuals, against their will, the right to the inviolability of the home protects "a specific spatial area" since in it individuals exercise their most intimate freedom, free from all subjection to social uses and conventions, being the object of protection of this right both the physical space itself and what emanates from the person and their private sphere within it. Therefore, we have asserted that the constitutional protection of the home is an instrumental protection, which defends the areas in which the private life of the person develops.

Among other consequences, such instrumental character determines that the constitutional concept of home has a broader scope than the private or administrative legal concept of home and does not admit "reductionist conceptions" (see, among others, SSTC 94/1999, of May 31, FJ 5, and 10/2002, of January 17, FJ 6 in fine). For this reason, we have asserted in legal basis 8 of the aforementioned STC 10/2002 that "the essential feature that defines the home for the purposes of the protection provided by art. 18.2 CE lies in its suitability to develop private life within it and in its specific destination for such development, even if it is eventual.

This means, firstly, that its destination or use constitutes the essential element for the delimitation of constitutionally protected spaces, so that, in principle, their location, physical configuration, whether movable or immovable, the existence or type of legal title that enables its use, or, finally, the intensity and periodicity with which private life is developed therein are irrelevant. Secondly, while the effective development of private life is the determining factor of the specific suitability for the space in which it develops to be considered a home, it does not necessarily follow that such suitability cannot be inferred from some of these notes, or from others, insofar as they represent objective characteristics

according to which it is possible to delimit the spaces that, in general, can and...

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are often used to develop private life." Likewise, "the very instrumental nature of the constitutional protection of the home concerning the protection of personal and family privacy requires that, regardless of the physical configuration of the space, its external signs clearly reveal the owner's intention to exclude that space and the activities carried out therein from the knowledge and intrusions of third parties." From this, we draw the conclusion, declaring the unconstitutionality of the provisions in Article 557 of the Criminal Procedure Act that "the rooms of hotels can constitute the domicile of their guests, since, in principle, they are suitable places, due to their own characteristics, for the development of the private life of those, given that the usual purpose of hotel rooms is to carry out activities that can be generically framed within private life" (*the bold and underlined text belongs to this body).

For all the above reasons in the examined case, none of the legal bases of Article 6.1 of the GDPR that could legitimize the processing are present.

Furthermore, the installation of a video camera, even when it is demonstrated that it is not legitimized, entails the unavoidable obligation to inform about its presence through an informative device, in a sufficiently visible place, identifying at least the existence of the processing, the identity of the responsible party, and the possibility of exercising the rights provided for in Articles 15 to 22 of the GDPR.

V

It is considered that the facts presented violate the provisions established in Articles 6.1 and 13 of the GDPR, which constitute the commission of respective infringements typified in Article 83.5 of the GDPR, which states the following:

"The infringements of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to 4% of the total annual global turnover of the previous financial year, opting for the higher amount:

- a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;
- b) the rights of the data subjects under Articles 12 to 22; (...)"

For the purposes of the statute of limitations for infringements, the infringement indicated in the previous paragraph is considered very serious in accordance with Article 72.1 of the LOPDGDD, which establishes that:

"Based on what is established in Article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and shall prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

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b) The processing of personal data without any of the conditions for lawful processing established in Article 6 of Regulation (EU) 2016/679.

(...)

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and 12 of this Organic Law.

(...)"

VI

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Therefore, it is necessary to adjust the sanction to be imposed according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

In this case, the following facts have been taken into account, in particular, as aggravating factors:

- The nature, severity, and duration of the infringement (Article 83.2.a GDPR), given that, as already noted, the home is inviolable, and the installation of video cameras implies a significant infringement of the privacy of the individuals who live there.

For all these reasons, it is considered that the corresponding sanction is an administrative fine. It should be noted that the voluntary payment of the proposed amounts does not exempt from demonstrating the regularization of the video surveillance system in accordance with the current regulations.

VII

The text of the resolution establishes what the committed infringements have been and the facts that have led to the violation of data protection regulations, from which it is clearly inferred what measures should be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments to implement them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

Any type of device inside the home must be uninstalled, reminding that the home is a space reserved for the intimacy of individuals, who can carry out their personal activities therein free from any type of observation that affects their privacy in the broadest sense.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of further administrative sanctioning procedures.

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Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of the sanctions whose existence has been established, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on B.B.B., with NIF ***NIF.1, for a violation of Article 6.1 of the GDPR and Article 13 of the GDPR, classified under Article 83.5 of the GDPR, a fine of €5,300 (€5,000 + €300).

SECOND: TO ORDER B.B.B., with NIF ***NIF.1, pursuant to Article 58.2.d) of the GDPR, within ONE MONTH, to prove compliance with the following measure:

- Removal of any type of image capture device from inside the rental property, proving this with a photograph showing date and time (before and after the uninstallation).

THIRD: TO NOTIFY this resolution to Mr. B.B.B.

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right. The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No. IBAN: ES00 0000 0000 0000 0000 0000 (BIC/SWIFT Code: XXXXXXXXXXXX),

opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second month following or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a reconsideration appeal before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, the provisional suspension will be considered terminated.

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